

MOTION FOR SUMMARY JUDGMENT

The plaintiff hereby moves this court pursuant to Federal Rule of Civil Procedure 56 for an order granting summary judgment in its favor. Under 42 U.S.C. § 1983, any person acting under color of state law who deprives another of rights secured by the Constitution shall be liable in damages. See *Brown v. Board of Education*, 347 U.S. 483 (1954). The amount in controversy exceeds \$75,000. This motion was filed on January 15, 2026. Counsel for the plaintiff, Harvey Specter, respectfully submits this brief.

ARGUMENT

I. THE DEFENDANT VIOLATED PLAINTIFF'S CONSTITUTIONAL RIGHTS

The uncontroverted evidence establishes that the defendant, acting under color of state law, deprived the plaintiff of his Fourteenth Amendment rights. The Court of Appeals for the Second Circuit held in *Specter v. Litt*, 892 F.3d 441 (2d Cir. 2018), that such deprivations give rise to liability under 42 U.S.C. § 1983.